



## DELIBERATION/2025/267

### I. Request

1. The CNPD is an independent administrative authority, having national authority and control powers for the purposes of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (General Data Protection Regulation – GDPR), as provided for in Article 2 of Law No. 43/2004, of August 18, which established the Law on the Organization and Operation of the CNPD, as well as Article 3 in conjunction with the provisions of Article 3 and paragraph 2 of Article 4, all of Law No. 58/2019, of August 8, also known as the Law on the Implementation of the GDPR (LIGPD).

2. Following requests made by various journalists aimed at identifying the Data Protection Officers (hereinafter DPOs) related to the company Spinumviva, the CNPD issued Deliberations No. 2025/234 and 2025/235.

3. After these Deliberations, successive and constant requests for "additional clarifications" or "other clarifications" have arisen at the CNPD regarding new companies, reformulations of the initial request, as well as explanations on whether a company can assume the functions of DPO, whether there was timely communication of these DPOs to the CNPD, whether the lack of registration of DPOs constitutes an illegality/infringement and what the respective punishment is, and whether there is "any such procedure in the case of Spinumviva."

### II. Analysis

#### i) The provision of information and access to administrative documents

4. The CNPD is an independent administrative entity in matters of personal data protection, for the defense of the rights, freedoms, and guarantees of individuals in the context of personal data processing, as established in the Constitution of the Portuguese Republic (Article 267, paragraph 1) and referenced quite clearly in the aforementioned Law No. 43/2004 that establishes its Organization and Operation (Article 2).

5. The GDPR also establishes the legal framework for supervisory authorities, thus encompassing the CNPD, defining its competencies, attributions, and powers (cf. Articles 55 to 58). In these, the provision of information is only foreseen when it concerns the data subject regarding the exercise of their rights (Article 57, paragraph 1, point e) GDPR).

6. It is also worth noting that the CNPD is not a regulatory entity of the economy, namely of the data market, but rather assumes the legal-administrative guardianship of personal data that may be involved in that activity, having no functions of regulation and promotion of competition defense in the economic activities of the private, public, cooperative, and social sectors. Thus, Law No. 67/2013, of August 28, which establishes the Framework Law for Regulatory Entities, as listed in its Article 3, paragraph 3, does not apply to the CNPD.

7. In turn, according to Law No. 10/2024, of January 19, which enshrined the Legal Regime of Acts of Lawyers and Solicitors, legal consultation is the responsibility of those who practice law or solicitorship, being considered as such "the activity of legal advice that consists of the interpretation and application of legal norms at the request of a third party" (cf. Articles 4, paragraph 2, point d) and 6, paragraph 1).

8. However, "[t]he provision of generic information by entities of the direct or indirect administration of the State, by autonomous regions, by local authorities, by other collective entities of autonomous administration, and by other public collective entities, on matters included within the scope of their respective attributions and competencies, does not constitute legal consultation" (Article 6, paragraph 2 of Law No. 10/2024) – with our emphasis in italics.

9. In turn, access to administrative documents is governed by Law No. 26/2016, of August 22, amended and republished by Law No. 68/2021, of August 26, commonly referred to as the Law on Access to Administrative Documents (LADA).

10. In the regulation of the exercise of the right of access, LADA begins by establishing in its Article 12, paragraph 1 that "Access to administrative documents must be requested in writing, through a request that contains the essential elements for the identification of the requester, namely the name, personal

or collective identification data, contact details, and signature."

11. Now, the right of access to generic administrative documents is legally based on the lack of necessity to state any interest (Article 5, paragraph 1 LADA), but in the case of access to nominative administrative documents, there is already a need to substantiate that claim (Article 6, paragraph 5, point b) LADA).

12. Thus, it is appropriate to distinguish between the provision of legal information by the CNPD and access to nominative administrative documents existing at the CNPD. These are two differentiated processes, with equally distinct legal frameworks and mechanisms, which cannot be confused.

13. In this regard, we recall that the CNPD, in its previous deliberations referenced and in light of the vagueness of the factual foundation and indeterminacy of the legal sustainability of the requests presented to it, made a *pro actione* interpretation of the principles of procedural adequacy (Article 56) and inquisitoriality (Article 58) established in the Code of Administrative Procedure (CPA), that is, it prioritized the substance of the requests presented over formalistic requirements, particularly in establishing the respective factual circumstances, due to the specific reasons previously invoked.

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14. However, it should be noted that according to the principle of decision established in Article 13 of the CPA, "[t]he bodies of the Public Administration have the duty to pronounce on all matters within their competence that are presented to them and, in particular, on matters that directly concern the interested parties, as well as on any petitions, representations, complaints, or grievances made in defense of the Constitution, the laws, or the public interest" (paragraph 1).

15. However, the aforementioned principle of decision has subjective and objective limits, since according to the same Article 13 of the CPA, but now through its paragraph 2, it is established that "[t]here is no duty to decide when, less than two years from the date of submission of the request, the competent body has taken an administrative act on the same request, made by the same individual with the same grounds." This exclusion aims to prevent the successive consideration of identical requests, regarding the subjects and the issues raised, in order to discourage the existence of repetitive requests.

16. But "[t]he bodies of the Public Administration may decide on something different or broader than what is requested, when the public interest so requires" (Article 13, paragraph 3 CPA).

17. In the cases at hand and regarding the CNPD, the public interest that it protects is essentially the protection of personal data, as a subjective dimension of its holders, and also in its objective referential dimension of value (good in itself) and principle (mandate of optimization).

18. In accordance with this legal framework, the CNPD will provide general clarifications and not specific ones, on some of the legal issues that have now been raised, but with an essentially pedagogical intent.

ii) The legal duty to appoint the Data Protection Officer (DPO)

19. The GDPR establishes in its Article 37, paragraph 1 that "The controller and the processor shall designate a data protection officer whenever: a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity; b) the core activities of the controller or the processor consist of processing operations which, by their nature, scope, and/or purposes, require regular and systematic monitoring of data subjects on a large scale; or c) the core activities of the controller or the processor consist of processing on a large scale of special categories of data referred to in Article 9 and personal data relating to criminal convictions and offenses referred to in Article 10" – with our emphasis.

20. The LERGD has specified the regime for the appointment of the DPO by public entities (Article 12), whose designation is mandatory (paragraphs 2 and 3), such as the State, the autonomous regions, local authorities, public institutes, public higher education institutions, state-owned enterprises, regional or local enterprises, and public associations.

21. The same LERGD has practically reproduced the clause of the cases already contained in the

GDPR in which there is a mandatory obligation to appoint the DPO for private entities, enshrining a genuine “legal tautology” (Article 13), directed at situations of regular and systematic monitoring of data subjects on a large scale (a) or when it concerns large-scale processing of so-called sensitive data, revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data, biometric data for identification, data concerning health, sexual life, or sexual orientation of a person, or corresponding to criminal convictions or administrative offenses (b).

22. The Article 29 Working Party on Data Protection, as an independent European advisory body on data protection, established in 2017 “Guidelines on Data Protection Officers (DPOs)” ([https://www.cnpd.pt/media/meplvdie/wp243rev01\\_pt.pdf](https://www.cnpd.pt/media/meplvdie/wp243rev01_pt.pdf)). Such guidelines have been adopted by the European Data Protection Board (EDPB).

23. Thus, only the entities responsible for data processing and the processors, that is, the organizations or companies that decide “when, how, and why” to carry out operations concerning personal data, can designate the respective DPO. For this purpose, there are cases of mandatory appointment, expressly provided for in the law, and cases of voluntary appointment, according to the criteria adopted by the responsible entities.

24. The GDPR and the LERGD established the rule that public entities must always appoint their DPO, while private entities only have this obligation in specific and limited cases of large-scale processing of personal data (1) and whenever (2) subject to regular and systematic monitoring (i), concern sensitive data (ii) or data relating to criminal convictions or administrative offenses (iii).

25. The GDPR, particularly in its Article 37, implies that the DPO must be a natural person since its appointment refers to their “professional qualities and, in particular, [their] specialized knowledge in the field of law and data protection practices, as well as their ability to perform the tasks referred to in Article 39” (paragraph 5), and may be “a member of the staff of the controller or the processor, or perform their tasks based on a service contract” (paragraph 6).

26. This does not mean that the DPO, as a natural person, cannot provide services or be linked to an external company to the entity responsible for the processing.

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27. In cases of mandatory appointment, the GDPR did not set any deadline for the publication and communication of the DPO to the national supervisory authority (Article 37, paragraph 7). The LERGD also did not establish any time period for this purpose, nor for the cessation of duties. However, some countries, such as Spain, have set this deadline in their respective implementing laws<sup>1</sup>.

28. The GDPR only requires that the information provided to the data subject includes “[t]he contact details of the data protection officer, where applicable” [Articles 13, paragraph 1, point b); 14, paragraph 1, point b)]. And this contact – and not their identity – of the data protection officer must be published and communicated to the supervisory authority, in this case, the CNPD (Article 37, paragraph 7).

29. It is also worth noting that the GDPR only requires the name of the DPO, in addition to their contact details, to be known by the data controller or the processor in the records of processing activities [Article 30, paragraph 1, point a), paragraph 2, point a)] and in communication to the supervisory authority, but in this case only in situations of personal data breaches, commonly referred to by the anglicism data breach [Article 33, paragraph 3, point b)].

30. The Article 29 Working Party on Data Protection, in its aforementioned “Guidelines on Data Protection Officers (DPOs),” stated the following:

“Article 37, paragraph 7, does not require that the published contacts include the name of the DPO. Although the publication of this information may constitute good practice, it is up to the data controller or processor and the DPO to decide whether this is necessary or useful in the specific circumstances.

However, the communication of the name of the DPO to the supervisory authority is essential for the DPO to function as a point of contact between the organization and the supervisory authority [Article 39, paragraph 1, point e)].”

31. In summary, the establishment of the DPO, whether by mandatory appointment or voluntary appointment, its publication, both internally and externally, and its communication to the CNPD is a legal duty of the entities responsible for data processing and the processors, but not of the DPO.

32. The functions of the DPO are enshrined in Article 39, paragraph 1 of the GDPR, which consist of informing and advising the data controller or processor, as well as those who carry out that processing (a), monitoring compliance with procedures (b), providing advice (c), cooperating with the supervisory authority (d), and serving as a point of contact with the supervisory authority (e).

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The Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights establishes for this purpose in its Article 34, paragraph 3 a deadline of ten (10) days, whether for mandatory appointment or voluntary appointment, both for the commencement and for the cessation of duties (<https://www.boe.es/buscar/act.php?id=BOE-A-2018-16673&tn;=1&p;=20230509>)

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33. Thus, the DPO assumes a position of guarantor for the protection of personal data, being the pivot of a triangular relationship between the data subject, the data controller, and the supervisory authority.

34. Finally, it should be noted that the GDPR establishes in its Article 83 the general conditions for the application of fines, while the LERGPD establishes in Articles 37 to 39 the sanctioning parameters for administrative offenses.

### III. Decision

In light of the terms and grounds set forth, the CNPD resolves to provide the aforementioned clarifications.

Approved at the meeting on April 1, 2025.

Digitally signed by

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